

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE

(JUDICIAL DEPARTMENT)

Transfer Application No.68837 of 2025

Mst. Ayesha Nasir

Vs.

Aoun Abbas etc.

JUDGMENT

Date of Hearing	25.02.2026
For Applicant	Sahibzada Muzaffar Ali, Tahir Mahmood Mughal, Shahzad Hamid, Syed Amir Ali Shah, Rooha Khan and Syed Shafiq Shah, Advocates.
For Respondent	Respondent No.1 proceeded ex-parte vide order dated 17.12.2025
	Mr. Muhammad Azam Chughtai, Assistant Advocate General Punjab. Rana Arfan Ali, Assistant Attorney General for Pakistan.

MALIK MUHAMMAD AWAIS KHALID, J. Through this transfer application under section 25-A of the Family Court Act, 1964 (the “Act”) the applicant has prayed as under:

“Under the circumstances it is humbly prayed that the suit for restitution of conjugal rights titled "AOUN ABBAS V/S AYESHA NASIR PENDING IN THE COURT OF MR. NAEEM AHMAD LEARNED FAMILY JUDGE JARANWALA DISTRICT FAISALABAD, FIXED FOR 22.11.2025 AND (2) CASE TITLED "MST. AYESHA NASIR ETC V/S AOUN ABBAS PENDING IN THE COURT OF MS. NOSHABA MUSHTAQ LEARNED FAMILY JUDGE, LAHORE FIXED FOR 27.11.2025 may please be transferred/consolidated to THE COURT OF MS. NOSHABA MUSHTAQ LEARNED FAMILY JUDGE, LAHORE from Jaranwala District Faisalabad to District Lahore.

It is further prayed that both the suits be consolidated so that a single judgment be pronounced in both cases as a subject matter of the both cases pertained to the family in the interest of justice and fair play.

It is further requested / prayed that till the decision of this application proceedings in both titled cases may kindly be stayed in the interest of justice and fair play.”

2. The facts as mentioned by applicant necessary for deciding this Transfer Application filed under section 25-A of the Act for the transfer/consolidation of cases from District Faisalabad to District Lahore where applicant is residing with her father; Aoun Abbas respondent No.1 (the **“respondent”**), filed a suit for restitution of conjugal rights against the applicant by deliberately providing her wrong address despite the fact that the applicant, Mst. Ayesha Nasir, is permanently residing at 24-B, 13-Link Sarwar Road, Lahore Cantt., and is living there with her father along with a minor daughter; applicant has already instituted a suit for recovery of maintenance allowance which is pending adjudication before the learned Judge Family Court, Lahore. Respondent is resident of Chak No.630 G.B., Tehsil Jaranwala, District Faisalabad, with mala-fide intention and ulterior motive instituted the suit at Jaranwala to cause harassment and hardship to the applicant. Being a lady, the applicant is unable to travel to Jaranwala on each and every date of hearing. Since both matters pertain to the same matrimonial dispute, i.e., restitution of conjugal rights and recovery of maintenance allowance, the interest of justice, equity and fair play demands that the suit titled **“Aoun Abbas v. Ayesha Nasir”** pending before the learned Judge Family Court, Jaranwala, District Faisalabad, be transferred to Lahore and consolidated with the suit titled **“Mst. Ayesha**

Nasir etc. v. Aoun Abbas” pending before the learned Judge Family Court, Lahore, so that both cases may be adjudicated by one Court to avoid hardship to the applicant and to prevent the possibility of conflicting judgments.

3. Respondent was served personally, therefore, he proceeded against ex-parte, vide order dated 17.12.2025, there is no reason to suppose that he may not be aware of this application. It appears that he is not interested in opposing the prayer for transfer. Hence this application has been heard ex-parte.

4. Arguments heard. Record perused.

5. Section 25-A of the Act, deals with **transfer of cases**, empowering High Courts to move family suits from District Court of one district to District Court of another district for efficient disposal and ensuring justice. Section 25-A of the Act is reproduced as under:-

“25-A. Transfer of cases. Notwithstanding anything contained in any law the High Court may, either on the application of any party or of its own accord, by an order in writing-

(a) transfer any suit or proceeding under this Act from a District Court in one District to a District Court in another district, and

(b) transfer any appeal or proceeding under this Act from the District Court of one district to the District Court of another district.

(2) A District Court, within the district of the jurisdiction, may, either on the application of any party or of its own accord by an order in writing, transfer any suit or proceeding under this Act from one Family Court to another Family Court.

(3) Any Court to which a suit, appeal or proceeding is transferred under the preceding sub-sections, shall, notwithstanding anything contained in this Act, have the jurisdiction to dispose it of in the manner as if it were instituted or filed before it:

Provided that on the transfer of a suit, it shall not be necessary to commence the proceedings before the succeeding Judge de novo unless the Judge, for reasons to be recorded in writing, directs otherwise.”

6. Being a lady residing at Lahore with a minor child, the applicant has approached this Court through an application seeking transfer of the suit filed by respondent titled “**Aoun Abbas v. Ayesha Nasir**” pending before the learned Judge Family Court, Jaranwala, District Faisalabad to Lahore, where applicant presently resides, to meet the ends of justice. Furthermore, in this regard **Rule 6** of the West Pakistan Family Courts Rules, 1965 (the “**Rules**”) is relevant which is reproduced as under:

"Rule 6. The Court which shall have jurisdiction to try a suit will be that within the local limits of which:-

(a) the cause of action wholly or in part has arisen, or

(b) where the parties reside or last resided together.

Provided that in suits for dissolution of marriage or dower, the court within the local limits of which the wife ordinarily resides shall also have jurisdiction."

In terms of proviso to Rule 6 of the Rules, the rigors of normal rule providing for territorial jurisdiction for trial of cases in Family Court have been relaxed in favour of a female filing a suit for dissolution of marriage or recovery of dower. Words "Ordinarily resides" and "shall also have jurisdiction" used in the said proviso demonstrate the intention of legislature to facilitate things for the wife and off-set her handicap.

The suit filed by the respondent for restitution of conjugal rights against the applicant titled “**Aoun Abbas v. Ayesha Nasir**” itemized at Serial No.4, Schedule Part I, of the Act, therefore, within the domain and jurisdiction of Family Court, which is reproduced as under:

SCHEDULE
(See Section 5)
PART I

1. Dissolution of marriage ["including Khula"]
 2. Dower.
 3. Maintenance.
 - 4. Restitution of conjugal rights.**
 5. Custody of children ["and the visitation rights of parents to meet them"]
 6. Guardianship.
 7. [Jactitation of marriage]
 8. Dowry
 9. Personal property and belongings of a wife.
- Punjab Amendment:** In the Schedule, in Part i, for entry at serial No. 9, the following shall be substituted:
- “9. The personal property and belongings of a wife and a child living with his mother.
10. Any other matter arising out of the Nikahnama.”

Instant application, under section 25-A of the Act, has been filed by Mst. Ayesha Nasir for transfer of a suit for restitution of conjugal rights filed by the respondent Aoun Abbas in the Court of Mr. Naeem Ahmad, learned Judge Family Court, Jaranwala to the Court of Ms. Noshaba Mushtaq, learned Family Judge, Lahore for the reason that it will not be convenient for her to attend to the litigation at two different places being resident at Lahore and for avoiding the possibility of conflict in the decisions, both the cases should be tried in one Court at Lahore where the applicant is residing.

7. Residence of female would determine the territorial jurisdiction of the Family Court to adjudicate upon matters enumerated in **Schedule** of the Act. While relying on case law reported as Sohail Ahmed vs. Mst. Samreena Rasheed Memon and another (2024 SCMR 634), Mst. Parrasan vs. Muhammad Yusuf (1989 MLD 2288), Muhammad Iqbal through Special Attorney Faiz Sultan vs. Parveen Iqbal (PLD 2005 SC 22), Mst. Nasreen Akhtar alias Farha Nasreen vs. Sh. Mushtaq Ahmad (1989 MLD 84), Mst. Perveen Akhtar vs. Muhammad Ali (1999 MLD 3401), Muhammad Ilyas vs. Mst. Zarina (PLD 1983 Lahore 462), Zulfiqar Ahmad vs. Nabila Bibi (PLD 1987 Lahore 561), Salma Bibi vs. Muhammad Iqbal (PLD 1982 Lahore 455) and Mukhtar Sultana vs. Tasadaq (Tasadaq Hussain) (PLD 1979 Lahore 34(1)), suits of the parties must be adjudicated by the Court at Lahore. Consequently, suit of the respondent titled “**Aoun Abbas v. Ayesha Nasir**”, therefore, now stands transferred from the Court of Mr. Naeem Ahmad, learned Family Judge, Jaranwala to Ms. Noshaba Mushtaq, learned Family Judge, Lahore, before whom suit of the applicant is already pending. Transfer application is **allowed** in above terms.

**MALIK MUHAMMAD AWAIS KHALID
JUDGE**

Approved for reporting.

**MALIK MUHAMMAD AWAIS KHALID
JUDGE**